THE SHERIFF OF ZIMBABWE
versus
BROADHAVEN CONSTRUCTION (PRIVATE) LIMITED
and
BORROWDALE VALLEY ESTATES (PRIVATE) LIMITED
and
NEVILLE ROY BENNET

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 12 and 19 MAY, 2026

Interpleader Proceedings

B. Mahuni for the Applicant
V.C Chidzanga with *N. Banda,* for the 1st and 2nd Claimants
T. Gombiro for the Judgment Creditor

DEME J:

The Applicant approached this court through interpleader proceedings in terms of Rule 63 having been informed by the Claimants that they laid claim to the attached property. The Judgment Creditor obtained judgment against the Judgment Debtor namely Mandi Magret Majoni (hereinafter called "the Judgment Debtor") in case number HCH1359/25. The Judgment Creditor, consequently, instructed the Applicant to attach certain property described in the notice of seizure namely excavator and bulldozer. The first and second Claimants laid claims to the excavator and bulldozer respectively.

The first Claimant alleged that the equipment was purchased from Tractive Power Solutions in 2025. The first Claimant attached a fiscal tax invoice to its interpleader affidavit. Through oral submissions, Ms Chidzanga argued that the fiscal invoice is an authentic document with the verification code.

The second Claimant alleged that it acquired the bulldozer from South Africa through Munyaradzi Majoni. Munyaradzi Majoni is alleged to be one of the second Claimant's Directors. Some import documents were attached to the second Claimant's affidavits.

The claims were opposed by the Judgment Creditor who raised two points *in limine* for non-joinder of the Judgment Debtor and miscitation of the parties to the matter. The points *in limine* were eventually abandoned by Mr. Gombiro through oral submissions. On merits, the Judgment Creditor insisted that the Claimants failed to prove ownership of the vehicles claimed. The Judgment Creditor additionally claimed that the Claimants ought to have generated evidence for the registration of the two vehicles. Mr. *Gombiro* argued that the Claimants ought to have produced best evidence available through proof of registration of the vehicles. The court was referred to the case of *Chamisa and Ors* v *Mnangagwa*[1]. It was further argued by the Judgment Creditor that the import documents, having been authored outside the jurisdiction, ought to have been notarized.

The question which exercises my mind is whether the Claimants have, on a balance of probabilities, managed to prove ownership of the vehicles claimed.

It has been established in our jurisdiction that any claimant in interpleader proceedings must, on a balance of probabilities, prove ownership of the goods claimed failing which the claim may be dismissed. The Supreme Court in *Welli-Well (Pvt) Ltd* v *Imbayago and Another*[2] beautifully commented as follows*:*

> "It is settled that a party claiming ownership of a property placed under judicial attachment in interpleader proceedings must produce clear and satisfactory evidence to prove such ownership. Such a party bears the onus to prove ownership on a balance of probabilities."

Mr. *Gombiro* did not question the authenticity of the fiscal tax invoice attached to the first Claimant's affidavits. He submitted that, upon scanning the verification code, he was taken to the relevant page. However, Mr. *Gombiro* argued that the first Claimant ought to have gone a step further by providing proof for registration for the excavator. He maintained that the fiscal tax

[1] CCZ21/2019.

[2] SC 8/21

invoice could have been overtaken by events as the excavator could have been registered in the name of a third party after its alleged purchase. On this basis, he urged me to disregard the fiscal tax invoice as proof of ownership in the absence of proof of registration. He further contended that fiscal tax invoice only demonstrates a first step towards the acquisition of the excavator.

Fiscal tax invoices are a critical component of our tax law. Reference is made to the provisions of Section 20 of the Value Added Tax Act [*Chapter 23:12*] (Hereinafter called "the Value Added Tax". Section 20(4) of the Value Added Tax provides for basic requirements of the fiscal tax invoice. It provides that:

> "Except as the Commissioner may otherwise allow, and subject to this section, a tax invoice shall contain the following particulars—
> (a) the words "tax invoice" or "fiscal tax invoice" (or other word or phrase employed by the fiscalised recording regulations for the purpose of denoting an invoice of tax for the making of taxable supplies) in a prominent place; *[definition substituted by Act 4 of 2012]*
> (b)the name, address and registration number of the supplier;
> (c)name and address of the recipient and, if the recipient is a registered operator, the registration number of the recipient; *[paragraph amended by section 27 of Act 29 of 2004]*
> (d)an individual serialised number and the date upon which the tax invoice is issued;
> (e)a description of the goods or services supplied;
> (f)the quantity or volume of the goods or services supplied;
> (g)either—
> (i)the value of the supply, the amount of tax charged and the consideration for the supply; or
> (ii)where the amount of tax charged is calculated by applying the tax fraction to the consideration, the consideration for the supply and either the amount of the tax charged, or a statement that it includes a charge in respect of the tax and the rate at which the tax was charged."

The fiscal tax invoice is generated by the supplier after selling the product. The fiscal tax invoice creates a tax liability on the part of the supplier. No supplier would falsely create tax liability for itself. Mr. *Gombiro* did not dispute the authenticity of the fiscal tax invoice. Unlike the ordinary invoice, the fiscal tax invoice can only be generated by the fiscalised device after payment. The fiscal tax invoice attached to the first Claimant's affidavit complies with the provisions of Section 20(4) of the Value Added Tax, in my view. Mr. *Gombiro* did not make any submission that the fiscal tax invoice violates any provision of the law. On this basis, I am persuaded that the first Claimant acquired the machinery. This, in my view must be considered to be proof of ownership on a balance of probabilities. The excavator must therefore be declared not executable in the circumstances.

The second Claimant failed to draw a link between the bulldozer and itself. It is common cause that the document on page 88, which allegedly makes reference to the second Claimant, was not notarized or authenticated despite the fact that it was authored in South Africa. In terms of Rule 85, a document authored outside Zimbabwe must be authenticated in a manner specified therein. Rule 85 provides that:

> "85. (1) In this rule, unless inconsistent with the context—
> "authentication", in relation to a document, means the verification of any signature thereon;
> "commissioner" means a commissioner of the High Court appointed by the High Court to take affidavits or examine witnesses in any place outside Zimbabwe;
> "document" means any deed, written contract, power of attorney, affidavit or other writing, but does not include an affidavit sworn before a commissioner.
> (2) Any document executed in any place outside Zimbabwe shall be deemed to be sufficiently authenticated for the purpose of production or use in any court or tribunal in Zimbabwe or for the purpose of production or lodging in any public office in Zimbabwe if it is duly authenticated at such foreign place by the signature and seal of office—
> (a) of a notary public, mayor or person holding judicial office; or
> (b) in the case of countries or territories in which Zimbabwe, has its own diplomatic or consular representative, of the head of a Zimbabwean diplomatic mission, the deputy or acting head of such mission, a counsellor, first, second or third secretary, a consul-general or vice-consul; or
> (c) of any Government authority of such foreign place charged with the authentication of documents under the law of that foreign country; or
> (d) of any person in such foreign place who shall be shown by a certificate of any person referred to in paragraphs (a), (b) or (c) to be duly authorised to authenticate such document under the law of that foreign country; or
> (e) of a commissioned officer of the Zimbabwe Defence Forces as defined in section 2 of the Defence Act [*Chapter 11:02*], in the case of a document executed by any person on active service.
> (3) Notwithstanding anything in this rule contained, any document authenticated in accordance with the provisions of the Hague Convention Abolishing the Requirement of Legalisation for Foreign Public Documents shall be deemed to be sufficiently authenticated for the purpose of use in Zimbabwe where such document emanates from a country that is a party to the convention.
> (4) If any person authenticating a document in terms of subrule (2) has no seal of office, he or she shall certify thereon under his or her signature to that effect.
> (5) An affidavit sworn before and attested by a commissioner outside Zimbabwe shall require no further authentication, and may be used in all cases and matters in which affidavits are admissible as freely as if it had been duly made and sworn to within Zimbabwe.
> (6) Nothing contained in this rule shall prevent the acceptance as sufficiently authenticated by any court, tribunal or public office of any document which is shown, to the satisfaction of such court, tribunal or public office, to have been actually signed by the person purporting to have signed the same.
> (7) A commissioner may, where necessary, commission or authenticate documents, whether executed inside or outside Zimbabwe by electronic means."

The issue of authentication of documents was brought to the attention of the Claimants through the Judgment Creditor's opposing affidavit together with its heads of argument. The Claimants ignored this objection. This leaves me with no option except to employ the provisions of Rule 85. Such documents are therefore inadmissible for want of authentication. Ms *Chidzanga* referred the court to page 83 where the ZIMRA document is appearing. The document does not refer to the second Claimant. Hence, this document cannot be used to prove second Claimant's ownership of the bulldozer.

Ms *Chidzanga* argued that the second Claimant's resolution must also serve as proof of ownership for the bulldozer. In my view, this argument is baseless. A resolution was generated by interested parties namely the second Claimant's Directors. Hence, such document lacks probative value and cannot prove claimant Claimant's ownership of the bulldozer.

It is common cause that the bulldozer was found at the place of residence for the Judgment Debtor. The second Claimant argued that the Judgment Debtor had requested the machinery for use at her farm in Rusape. The possessor of the property is presumed to be the owner in the absence of evidence to the contrary. Presumption of ownership arising from possession of the machinery must be resolved against the second Claimant which failed to rebut such presumption. The second Claimant failed to give sufficient evidence of its ownership of the bulldozer in order to rebut the presumption. The Judgment Debtor must be presumed to be the owner of the bulldozer in the absence of evidence to the contrary. The presumption of ownership arising from possession was established over a century ago in the celebrated case of *Zandberg* v *van Zyl*[3], where the court held that:

"… possession of a movable raises a presumption of ownership …."

The case of *Zandberg* v *Van Zyl* was quoted with approval in the case of *Muzanenhamo* v *Fishtown Investments (Pvt) Ltd and Ors*[4]. The second claimant made it common cause that the property was still in possession of the judgment debtor at the material time. Under such

[3] 1910 AD 258 at 272

[4] SC8/17.

circumstances, the presumption of ownership must apply as the second claimant failed to rebut this presumption unlike the first Claimant which rebutted the presumption through tendering of the fiscal tax invoice.

Further, the deponent to the second Claimant's affidavits failed to reply to the issue of close relationship between himself and the Judgment Debtor given the similarities in their last names. Reference is made to paragraph 10 of the Judgment Creditor's opposing affidavit. This serious allegation drew no response from the second Claimant. The Claimants failed to seek leave for filing supplementary evidence in order to clarify on this aspect. The court is forced to draw adverse inference against the second Claimant in this regard. Collusion, in my view, is highly likely under such circumstances.

The second Claimant alleged that the bulldozer was brought to the Judgment Debtor's farm upon request by the Judgment Debtor. Such arrangements cannot arise in ordinary relationship. Thus, the second Claimant and the Judgment Debtor must be enjoying special relationship for such arrangements to be in existence. Such special relationship creates a fertile ground for collusion against the Judgment Creditor. Faced with such circumstances, the court must employ a high degree of circumspection in order to draw appropriate conclusions arising from the facts placed before it. In the case of *James Gumbi* v *Mandy Margaret Majoni*[5], CHIGUMBA J postulated the following remarks:

> "The facts of this matter in my view disclose a tangled web of deceit. The plaintiff is cast in the role of the big hairy spider, and the defendant, would have the court believe that she is a harmless fly, caught in the spider's web. There is an underlying element that pervades this case, of an unfortunate malaise that has afflicted business transactions in this country, in these harsh economic times. People borrow money, then turn around and come up with the flimsiest of excuses to avoid paying back. The court's task is to separate the wheat from the chaff, and to determine who is telling the truth between the borrower and the lender. In order to do this, the court looks at the evidence on the papers which the parties place before it. Sometimes, the court can decide that the whole story is not apparent from the papers before it, and consequently, refers the matter to trial so that witnesses can testify under oath. Other times, the court can adopt a robust approach when it looks at the papers before it, and decide that the papers contain sufficient evidence for the dispute to be resolved without going to trial."

[5] HH654/14.

Further, the court must avoid reaching stereotypical assumptions by supposing that close relationships do always lead to collusion between close relatives. However, where there is no sufficient explanation of the close relationship, the court will be left with no option except to draw adverse conclusion. MAFUSIRE J, in the case of *The Sheriff of High Court* v *Munyaradzi Yutini Majoni* and *Others*[6], made the following pertinent remarks:

> "In my view, despite the real possibility of collusion between the judgment debtor and a claimant who are spouses, or in some way very closely related, the court should always free itself of stereotypes and preconceived notions. The case must be decided on the basis of the evidence placed before it. Nonetheless, the court should not be blind to the real possibility of such collusion taking place. It is just prudent to adopt a higher degree of circumspection where the claimant and the judgment debtor are closely related, whether by blood or through marriage, or if they are close business or social partners or associates, etc. than would otherwise be the case with total strangers. It is pure common sense."

In *casu*, Ms *Chidzanga* admitted that Munyaradzi Majoni is closely related to the Judgment Debtor but did not disclose the nature of the relationship for the court to be able to make a proper conclusion. Hence, the court must draw its own deduction based on the evidence available. The second Claimant failed to give satisfactory and sufficient evidence necessary to prove its ownership of the bulldozer on a balance of probabilities. The second Claimant's claim is consequently unmerited. Such claim must, as a result, be dismissed. In the circumstances, the bulldozer must be declared executable.

On the question of costs, it has been conventionally established that costs follow the outcome. I am of the view that the Claimants and the Judgment Creditor must pay Applicant's costs of suit in light of the fact that the parties enjoyed partial success. In the circumstances, it is resultantly ordered that:

A. The first Claimant's claim to the property namely excavator which was placed under attachment in execution of judgment in HCH 1359/25 be and is hereby granted.

B. The excavator attached in terms of the Notice of Seizure and Attachment dated the 17th November 2025 issued by the Applicant be and is hereby declared not executable.

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[6] HH689/15.

C. The second Claimant's claim to the property namely bulldozer placed under attachment in execution of judgment in HCH 1359/25 be and is hereby dismissed.

D. The bulldozer attached in terms of the Notice of Seizure and Attachment dated the 17th of November 2025 issued by the Applicant be and is hereby declared executable.

E. The Claimants and Judgment Creditor shall pay Applicant's costs of suit on an ordinary scale.

DEME J:. …….....

Muvingi Mugadza Legal Practitioners, Applicant's Legal Practitioners
Moyo and *Jera* Legal Practitioners, Claimants' Legal Practitioners
Chimwamurombe Legal Practice, Judgment Creditor's Legal Practitioners